

CITATION: McCurdy, et al. v. Maille, et al., 2023 ONSC 6857
COURT FILE NO.: CV-16-00001478-0000
DATE: 20231206

SUPERIOR COURT OF JUSTICE – ONTARIO

RE: Randy Dale McCurdy, Sandra Jean McCurdy, Barry McCurdy, and Jackson McCurdy, Mya McCurdy, and Olivia McCurdy, by their Litigation Guardian, Sandra Jean McCurdy, Plaintiffs

AND

Charles Maille, The Corporation of the United Counties of Stormont, Dundas and Glengarry and 809298 Ontario Inc., Defendants

BEFORE: Justice Spencer Nicholson

COUNSEL: V. Edgar and A. Duggan for the Plaintiffs

B. Sunohara and A. Colarossi for the Defendants, Charles Maille and 809298 Ontario Inc.

HEARD: March 27, 28, 29, 30, 31, April 3, 4, 5, 6, 11, 12, 13 and May 25, 2023

REASONS ON POST-TRIAL MOTION RE:
COLLATERAL BENEFITS

ADDENDUM

NICHOLSON J.:

- [1] I released Reasons dated December 5, 2023, with respect to whether certain Manulife benefits were deductible from Mr. McCurdy's loss of income award following a jury trial.
- [2] In those Reasons, I stated that the parties had agreed that no deductible applied to the *Family Law Act* award made to Sandra McCurdy, which was \$65,000.
- [3] I was advised by the parties today that I misunderstood their agreement. In fact, the parties agree that Sandra McCurdy's award of \$65,000 is subject to the statutory deductible of \$22,183.63.
- [4] In fact no deductible would apply to an award for loss of care, guidance and companionship that exceeds \$73,944.18 as of 2023. Accordingly, the parties are correct and Sandra McCurdy's award is subject to the deductible.
- [5] Accordingly, the net judgment should be as follows:

In respect of Randy McCurdy

Non-Pecuniary General Damages	\$ 245,000.00
Past Loss of Income	\$ 16,667.83
Future Loss of Income	\$1,362,887.00
Pre-judgment interest	\$ 13,762.96

In respect of Sandra McCurdy (wife)

Loss of care, guidance and companionship	\$ 42,816.37
Compensation for Services Rendered	\$ 35,000.00
Pre-judgment interest	\$ 4,371.36

In respect of Jackson

Loss of care, guidance and companionship	\$ 7,816.37
Compensation for Services Rendered	\$ 6,000.00
Pre-judgment interest	\$ 776.14

In respect of Mya

Loss of care, guidance and companionship	\$ 7,816.37
Compensation for Services Rendered	\$ 6,000.00
Pre-judgment interest	\$ 776.14

In respect of Olivia (youngest child)

Loss of care, guidance and companionship	\$ 0.00
TOTAL NET JUDGMENT	\$1,749,690.54

[6] I apologize for that oversight and appreciate the parties bringing it to my attention.

“Justice S. Nicholson”
Justice Spencer Nicholson

Date: December 6, 2023